

[13 GEO. 5.] *Scottish Widows' Fund and* [Ch. iii.]
Life Assurance Society's Order Confirmation
Act, 1922. (Session 2.)



CHAPTER iii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Scottish Widows' Fund and Life Assurance Society. A.D. 1922.
—

[15th December 1922.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63
Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Scottish Widows' Fund and Life Assurance Society's Order Confirmation Act 1922. (Session 2.) Short title.

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SCHEDULE.

SCOTTISH WIDOWS' FUND AND LIFE
ASSURANCE SOCIETY.

Provisional Order to confer further powers on the Scottish Widows' Fund and Life Assurance Society and to amend the Acts relating to the Society and for other purposes.

WHEREAS the Scottish Widows' Fund and Life Assurance Society (hereinafter called "the Society") was formed at Edinburgh in the year one thousand eight hundred and fourteen upon the principle of mutual assurance by and for the purposes mentioned in the deed of constitution and articles and regulations of the said Society bearing date the twenty-ninth day of July one thousand eight hundred and fourteen and subsequent days and recorded in the books of council and session in Scotland on the fourth day of October in the same year :

And whereas by the Scottish Widows' Fund and Life Assurance Society's Incorporation Act 1861 (hereinafter called "the Act of 1861") the Society was incorporated and empowered to carry on business according to the said deed of constitution and articles and regulations :

And whereas by the Scottish Widows' Fund and Life Assurance Society's Act 1882 (hereinafter called "the Act of 1882") provision was made for regulating the constitution and affairs of the Society and it was enacted that the provisions of the Act of 1882 and of the Act of 1861 as amended by the Act of 1882 together with the articles and regulations set forth in the schedule to that Act should form the constitution articles and regulations of the Society :

And whereas by the Act of 1882 provision was made for enabling the articles and regulations set forth in the schedule to that Act to be altered by resolution in manner in that Act mentioned :

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And whereas by the following Acts and Order A.D. 1922. namely :—

The Scottish Widows' Fund and Life Assurance Society's Act 1883;

The Scottish Widows' Fund and Life Assurance Society's Act 1891;

The Scottish Widows' Fund and Life Assurance Society's Act 1900; and

The Scottish Widows' Fund and Life Assurance Society's Order 1919;

further powers were conferred upon the Society and further provisions were made with respect to the affairs of the Society :

And whereas it is expedient that the laws and regulations to which the Society is now subject under and pursuant to the said recited Acts and Order should be amended as provided in this Order and that further powers should be conferred upon the Society for the regulation of the Society's affairs :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Scottish Widows' Fund and Life Assurance Society's Order 1922 and the Scottish Widows' Fund and Life Assurance Society's Acts 1861 to 1919 and this Order may be cited together as the Scottish Widows' Fund and Life Assurance Society's Acts 1861 to 1922. Short title and citation.

2. In this Order and in the articles and regulations set forth in the First Schedule to this Order the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say) :— Interpretation.

“The Society” means the Scottish Widows' Fund and Life Assurance Society;

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“The laws of the Society” means the provisions of the Scottish Widows' Fund and Life Assurance Society's Acts 1861 to 1922 together with the articles and regulations of the Society for the time being in force;

“Member” means member for the time being of the Society;

“Ordinary director” means ordinary director for the time being of the Society;

“Extraordinary director” means extraordinary director for the time being of the Society;

“Ordinary court of directors” means court or meeting of the ordinary directors of the Society;

“Extraordinary court of directors” means extraordinary court of directors of the Society as defined by the laws of the Society;

“Existing” means existing immediately before the commencement of this Order.

Commence-
ment of
Order.

3. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.”

Govern-
ment and
ordinary
administra-
tion of
Society's
affairs.

4. The government direction and superintendence of the affairs of the Society shall be vested in the extraordinary directors and the ordinary directors appointed and acting in accordance with the laws of the Society and the ordinary business and administration of the affairs of the Society shall be conducted and carried on by the ordinary directors and by the manager secretary agents and other officers and servants of the Society appointed and acting in accordance with the laws of the Society.

Articles
and regu-
lations in
First
Schedule to
be part of
articles
and regu-
lations of
Society.

5. The articles and regulations set forth in the First Schedule to this Order shall form part of the articles and regulations of the Society and shall have as full force and effect as the existing articles and regulations of the Society and may from time to time be repealed altered or innovated in like manner as under the laws of the Society the said existing articles and regulations may be repealed altered and innovated.

Approval
of forms of
proposals
and

6. From and after the commencement of this Order section 16 (Persons desirous of becoming members to sign a declaration) and section 17 (Policy to be delivered

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to member on admission) of the Act of 1882 and Article 22 (Extraordinary court to prescribe forms of declarations and policies) of the articles and regulations contained in the schedule to that Act shall be read and take effect as if for the expression "extraordinary court of directors" wherever that expression occurs in those sections and that article there were substituted the expression "ordinary court of directors." A.D. 1922.
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 policies by
 ordinary
 courts of
 directors.

7. The enactments set forth in the Second Schedule to this Order are hereby repealed as from the commencement of this Order and all the provisions of the Scottish Widows' Fund and Life Assurance Society's Acts 1861 to 1919 in so far as inconsistent with the provisions of this Order are hereby also repealed as from the date aforesaid but nothing in this Order contained shall be interpreted to affect the provisions of the said Acts except in so far as necessary to give effect to the express provisions of this Order. Repeal.

8. Notwithstanding such repeal as aforesaid and subject to the laws of the Society the ordinary directors extraordinary directors president vice-presidents and local directors of the Society who are in office at the commencement of this Order shall continue thereafter to hold and enjoy their respective offices. Con-
 tinuance of
 present
 directors
 &c. in office.

9. Nothing in this Order shall be deemed to exempt the Society from the provisions of the Assurance Companies Act 1909 or of any general Act passed during the present or any future session of Parliament affecting assurance companies formed previously to the passing thereof. Saving for
 general
 Acts.

10. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Society. Costs of
 Order.

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A.D. 1922. The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

ARTICLES AND REGULATIONS.

APPOINTMENT &C. OF ORDINARY DIRECTORS EXTRAORDINARY
DIRECTORS PRESIDENT AND VICE-PRESIDENTS.

Number of
ordinary
directors
and extra-
ordinary
directors.

1. The number of ordinary directors shall be such number not being more than sixteen or less than eight and the number of extraordinary directors shall be such number not being more than twenty-four or less than twelve as may from time to time be determined by resolution of the ordinary directors. Provided that a general court of the Society may at any time appoint an additional one or more ordinary directors or extraordinary directors in excess of the maximum number prescribed by this regulation if that course is recommended for special reasons by a resolution passed or approved by three-fourths of the ordinary directors for the time being in office.

Temporary
filling of va-
cancies in
directorates.

2. An ordinary court of directors may appoint any qualified person to be an ordinary director or an extraordinary director in the place of any ordinary director or extraordinary director respectively who has died or resigned or ceased to be a director under the provisions of the laws of the Society (otherwise than by retirement at the stated annual general meeting or court of the Society in accordance with the provisions of these regulations in that behalf) but the person so appointed shall remain in office only until the next election of directors at the stated annual general meeting or court of the Society, when he shall retire but shall be eligible for re-election as an ordinary director or extraordinary director.

Appoint-
ment of
ordinary
directors or
extra-
ordinary
directors in
special cases.

3. An ordinary court of directors may at any time appoint an additional one or more ordinary directors or extraordinary directors over and above the number for the time being in office (and notwithstanding that such appointment may increase the number of ordinary directors or extraordinary directors to a number in excess of the maximum otherwise applicable under these regulations) if they so decide for special reasons by a resolution passed or approved by three-fourths of the ordinary directors for the time being in office but any person so appointed as an ordinary director or extraordinary director shall remain in

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office only until the next election of directors at the stated annual general meeting or court of the Society when he shall retire but shall be eligible for re-election as an ordinary director or extraordinary director.

A.D. 1922

4.—(1) At the stated annual general meeting or court of the Society in each year three of the ordinary directors and four of the extraordinary directors shall retire in addition to any ordinary directors or extraordinary directors who may retire in pursuance of the provisions of these regulations as to the temporary filling of vacancies in the directorate and as to the appointment of ordinary directors or extraordinary directors in special cases. The meeting shall elect three ordinary directors and four extraordinary directors to fill the places of those retiring as aforesaid. Any ordinary directors or extraordinary directors retiring under this regulation shall be eligible for re-election.

Retirement and election of ordinary directors and extraordinary directors.

(2) The order in which the ordinary directors and extraordinary directors shall retire in terms of the preceding subsection and the order of the extraordinary directors on the roll of extraordinary directors (which shall be kept by the Society) shall from time to time be determined by the ordinary directors.

5. If at any stated annual general meeting or court of the Society the members shall fail to elect ordinary directors or extraordinary directors to fill the places of those retiring the ordinary directors or extraordinary directors retiring shall if willing to act be deemed to have been re-elected.

Default in election of ordinary directors or extraordinary directors.

6. The continuing ordinary directors or extraordinary directors may act notwithstanding any vacancy in their body and no act or proceeding of the ordinary directors or extraordinary directors or any of them or of an extraordinary court of directors either before or after the commencement of the Scottish Widows' Fund and Life Assurance Society's Order 1922 shall be invalid or open to be called in question on the ground merely that at the time when such act or proceeding took place any vacancy or vacancies existed in the number of ordinary directors or extraordinary directors of the Society as constituted at the date of such act or proceeding. Provided that if the number of ordinary directors or extraordinary directors shall fall below the prescribed minimum number the ordinary directors shall forthwith take the necessary steps to make up such minimum number.

Ordinary directors or extraordinary directors may act notwithstanding vacancy.

7. All acts done by any ordinary court of directors or by a committee of ordinary directors or by an extraordinary court of directors or by any person acting as an ordinary director or extraordinary director shall notwithstanding that it be afterwards discovered that there was some irregularity in the proceedings of such court or committee or some defect in the appoint-

Acts of courts of directors &c. to be valid notwithstanding defective

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A.D. 1922. ment of any ordinary director or extraordinary director taking
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 appoint- part in such court or committee or acting as aforesaid or that
 ments. any such ordinary director or extraordinary director was dis-
 qualified be as valid as if such proceedings had been regular
 and as if every such ordinary director and extraordinary director
 had been duly appointed and was qualified to be a director.

Qualification 8. Every ordinary director and every extraordinary director
 of ordinary must be a member of the Society and must have such interest
 directors and therein as may from time to time be fixed by resolution of a general
 extraordi- court of the Society.
 nary di-
 rectors.

Remunera- 9. A general court of the Society shall from time to time
 tion of fix the fees and remuneration to be paid to the ordinary directors
 ordinary and to the extraordinary directors for their trouble and attendance
 directors as to such court may seem just and reasonable and until other-
 and extra- wise so fixed such fees and remuneration shall be as fixed by
 ordinary the resolution of the general court of the Society dated the 1st
 directors. day of March 1910.

Ordinary di- 10. An ordinary director or extraordinary director may
 rectors or ex- resign at any time by notice in writing of his resignation signed by
 traordinary him and sent to or left at the head office of the Society in
 directors may Edinburgh.
 resign.

Removal of 11.—(1) A general court of the Society may remove an
 ordinary ordinary director or extraordinary director before the expiration
 directors and of the term of his office.

extraordi- (2) The ordinary directors at a meeting specially called for
 nary di- the purpose may by a resolution in which not less than three-
 rectors. fourths of the total number of ordinary directors for the time
 being in the United Kingdom shall concur remove from office
 an ordinary director or extraordinary director whose continuance
 in office shall appear to the ordinary directors voting in favour
 of such resolution to be prejudicial to the interests of the Society.

Vacation of 12. The office of an ordinary director or extraordinary
 office of director shall be vacated—

ordinary If he become bankrupt or suspend payment or compound
 director or with his creditors;
 extra- If he be found lunatic or become of unsound mind;
 ordinary If he cease to hold the necessary qualification;
 director in If he shall without permission from an ordinary court of
 certain cases. directors have been absent from all the ordinary courts
 of directors held during any six consecutive months
 and a resolution that he has so ceased to be an ordinary
 director shall have been minuted by an ordinary court
 of directors.

Director 13. An ordinary director or an extraordinary director may
 may hold hold any other office or place of profit under the Society (except
 other office

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the office of auditor) in conjunction with the office of director and on such terms as to remuneration tenure of office duties and otherwise as the ordinary directors think fit and a person shall not be disqualified from being appointed or acting as an ordinary director or an extraordinary director by reason of his holding or any partner of his holding any such other office or place of profit. A.D. 1922.
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except
auditor.

14. One of the extraordinary directors may be selected from time to time by an extraordinary court of directors to be the president of the Society and a number not more than six of the extraordinary directors may be selected from time to time by an extraordinary court of directors to be vice-presidents of the Society. President
and vice-
presidents.

PROCEDURE &C. OF ORDINARY DIRECTORS.

15. The ordinary directors shall meet at Edinburgh for the dispatch of business once a week or at such other intervals of time as an ordinary court of directors may from time to time prescribe and at any other meetings to which they may adjourn or to which they may be specially called by a written notice from the manager or secretary of the Society Any such meeting shall be called an ordinary court of directors The quorum for any such ordinary court of directors shall be three. Ordinary
courts of
directors
and quorum
thereat.

16. The ordinary directors shall from time to time elect one of their number to be their chairman for such period as shall be fixed at the time of such election and may in like manner elect one of their number to be deputy-chairman and in the absence of such chairman and deputy-chairman (if any) at any meeting they shall elect one of the ordinary directors present to be chairman of that meeting. Chairman of
ordinary
directors.

17. In all cases not otherwise specially provided for questions arising at an ordinary court of directors shall be determined by a simple majority of the ordinary directors present and qualified to vote and in case of equality the person in the chair shall have a casting vote over and above his original vote. Voting at
ordinary
courts of
directors.

18. In case at any time one-third of the ordinary directors present at an ordinary court of directors shall be of a different opinion from the majority it shall be in the power of the dissentients to require that the matter upon which such difference of opinion shall have arisen shall lie over and be referred to an extraordinary court of directors either assembled at their next stated meeting or at a special meeting to be called for the purpose and the said matter shall lie over and be referred accordingly and any decision of the extraordinary court with respect thereto shall prevail. Reference
from ordi-
nary court
of directors
to extra-
ordinary
court.

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Committees
of ordinary
directors.

19. The ordinary directors shall have power when they may think it necessary to appoint from among their number committees to whom they may commit any of the powers of the ordinary directors subject to such rules as to the quorum of any such committee or otherwise as they may deem proper and such committees shall report minutes of their proceedings to the ordinary court of directors.

EXTRAORDINARY COURT OF DIRECTORS.

Extraordi-
nary court of
directors.

20. A meeting of the ordinary directors and the extraordinary directors together shall constitute an extraordinary court of directors.

Meetings of
extraordi-
nary court of
directors.

21. There shall be one stated meeting of the extraordinary court of directors in each year on such day as the ordinary directors may from time to time appoint not being later than the fourth Tuesday of March or such other day as a general court of the Society may from time to time appoint as the latest date for such meeting. In addition to this stated meeting a special meeting of the extraordinary court of directors shall be held at any time if one-third of the ordinary directors present at an ordinary court of directors and differing in opinion from the majority of such court upon any matter require such matter to lie over and be referred to an extraordinary court of directors to be specially called for the purpose or if the president of the Society or any two of the vice-presidents or any three persons who are ordinary directors or extraordinary directors of the Society shall so require. Every meeting of the extraordinary court of directors shall be summoned by letter from the manager or secretary to all the ordinary directors and extraordinary directors requesting them to attend such extraordinary court of directors at the place appointed and at the time appointed which shall not be till ten days at least after the request is issued and specifying the business upon which the court is convened. The place of meeting and subject as aforesaid the time of meeting of every extraordinary court of directors shall be fixed by the ordinary directors.

Quorum for
extraordi-
nary court of
directors.

22. The quorum for an extraordinary court of directors shall be such number as may from time to time be fixed by an extraordinary court of directors and until otherwise so fixed shall be seven.

Chairman of
extraordi-
nary court of
directors.

23. At every extraordinary court of directors the president of the Society and failing him the vice-president present who is highest on the roll of extraordinary directors shall be entitled to take the chair and failing any vice-president the ordinary directors and extraordinary directors present shall elect one of their number to be chairman.

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24. In all cases not otherwise specially provided for questions arising at an extraordinary court of directors shall be determined by a simple majority of the ordinary directors and extraordinary directors present and qualified to vote and in case of equality the person in the chair shall have a casting vote over and above his original vote. A.D. 1922.
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 Voting at extraordinary court of directors.

25. In case at any time one-third of the ordinary directors and extraordinary directors present at an extraordinary court of directors shall be of a different opinion from the majority it shall be in the power of the dissentients to require that the matter upon which such difference of opinion shall have arisen shall lie over and be referred to a general court of the Society being either the next stated annual general meeting or court of the Society or a special general court to be called for the purpose. Provided always that the time of holding such general court shall not be less than three months from the time at which the matter in dispute shall have been considered by the extraordinary court of directors as aforesaid. Reference from extraordinary court of directors to general court of Society.

LOCAL BOARDS.

26.—(1) The ordinary directors may from time to time appoint any number of persons whether members of the Society or not to be a local board in any place whether in the United Kingdom in India in the Dominion of Canada in any other British dominion colony or dependency or in any other part of the world whether within the British Empire or not for the purpose of carrying on the business of the Society at any such place. Ordinary directors may appoint local boards.

(2) The ordinary directors may confer on a local board any powers vested in the ordinary directors to be exercised within the district for which such local board is appointed.

(3) The ordinary directors may out of the funds of the Society pay to the members of a local board such remuneration as the ordinary directors think fit.

(4) The ordinary directors may from time to time make regulations for the guidance and government of a local board.

(5) The ordinary directors may fill up any vacancy on a local board.

(6) The ordinary directors may at any time remove any member of a local board and appoint another member in his stead and may at any time dissolve a local board for any cause whatsoever and appoint another local board in its stead.

(7) The ordinary directors may authorise a local board to delegate all or any of the powers vested in such local board.

(8) Nothing in this regulation shall be deemed to prevent the Society from appointing from time to time any persons whether members of the Society or not selected by an ordinary court of

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A.D. 1922. directors to be and to act as attorneys of the Society either jointly or severally according to the terms of the appointment for all or any purposes connected with the investment of the moneys funds and property of the Society in the United Kingdom or elsewhere.

THE SECOND SCHEDULE.

ENACTMENTS REPEALED IN WHOLE OR PART.

Short Title of Act.	Section.	
	Num-ber.	Marginal Note.
Scottish Widows' Fund and Life Assurance Society's Act 1882.	8	Government and direction of Society's affairs.
	9	Ordinary administration of Society's affairs.
	10	Qualification of directors.
	15	Numbers necessary to constitute or-
	(part)	dinary and extraordinary courts of directors and general courts of the Society (repealed from the beginning of the section to "extraordinary court of directors").
	25	Weekly meetings of directors Three a quorum.
	27	Reference may be made to an extra-ordinary court.
	28	Extraordinary court when and how to be called.
	29	Ordinary court may devolve powers on committees.
	30	Meetings of extraordinary court Seven a quorum.
	34	Extraordinary court to appoint local directors.
Scottish Widows' Fund and Life Assurance Society's Act 1891.	37	Reference may be made to general court.
	41	General court to fix remuneration of directors.
	6	Amending section 34 of Act of 1882.

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Short Title of Act.	Section.	
	Num-ber.	Marginal Note.
Scottish Widows' Fund and Life Assurance Society's Act 1900.	9	Retirement and election of directors
	10	Directors may resign.
	11	Ordinary director to vacate office in case of absence.
	12	Ordinary court may fill up vacancies in directorate.
	13	Chairman of ordinary directors.
	15	Ordinary court may appoint local directors &c.
	17 (part)	Amending provisions of Act of 1882 (repealed to the extent of paragraph (1)).

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